

Calendar Line # 6
Case Name Quynh Tran vs City of San Jose
Case No. 24CV449214
Motion for Summary Judgment/Adjudication Before the court is defendant City of San Jose’s motion for summary judgment, or in the alternative, summary adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff Quynh Tran (“Tran”) alleges that, on October 20, 2023, defendant City of San Jose (“City”) negligently maintained the sidewalk adjacent to westbound Yerba Buena Road between Nieman Boulevard and Byington Drive. (Complaint, ¶¶Prem.L-1). This condition caused plaintiff Tran to trip and fall and sustain injury. (<i>Id.</i>). On October 10, 2024, plaintiff Tran filed a Judicial Council form complaint asserting a cause of action for premises liability—dangerous condition of public property. On December 11, 2024, defendant City filed its answer to plaintiff Tran’s complaint. On March 23, 2026, defendant City filed the motion now before the court, a motion for summary judgment/adjudication of plaintiff Tran’s complaint. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, subd. (a)(1): “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., §437c, subd. (a)(1)). “A defendant or cross-defendant has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., §437c, subd. (p)(2)). “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c)). <u>III. ANALYSIS</u> A. DANGEROUS CONDITION OF PUBLIC PROPERTY “A public entity is liable for injury proximately caused by a dangerous condition of its property if the dangerous condition created a reasonably foreseeable risk of the kind of injury sustained, and the public entity had actual or constructive notice of the condition a sufficient time before the injury to have taken preventive measures.” (<i>Cornette v. Dept. of Transportation</i> (2001) 26 Cal.4th 63, 66 citing Gov. Code, §835, subd. (b)). Government Code section 835 provides the basis for liability in an action against a public entity for an injury caused by the dangerous condition of public property. To establish liability under Government Code section 835, the following essential elements must be proved: (1) The public property was in a <i>dangerous condition</i> at the time of the injury; (2) The injury to the plaintiff was proximately caused by the dangerous condition; (3) The kind of injury that occurred was reasonably foreseeable as a consequence of the dangerous condition; and (4) Either:

- (a) The dangerous condition was created by a public employee's negligent or wrongful act or omission within the scope of his or her employment, or
- (b) The entity had actual or constructive notice of the condition a sufficient time before the injury occurred to have taken reasonable measures to protect against the injury.

(Gov. Code, §835; emphasis added; see also 2 VanAlstyne, California Government Tort Liability Practice (4th ed. 2006) §12.5, pp. 795 – 796; see also CACI, No. 1100).

B. DANGEROUS CONDITION

In seeking summary judgment, defendant City contends, among other things, the subject sidewalk was not in a dangerous condition at the time of the incident. Government Code section 830, subdivision (a) defines the term “dangerous condition” to mean “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” “In general, ‘whether a given set of facts and circumstances creates a dangerous condition is usually a question of fact and may only be resolved as a question of law if reasonable minds can come to but one conclusion.’” (*Peterson v. San Francisco Community College District* (1984) 36 Cal.3d 799, 810). “[A]lthough the question of whether a dangerous condition exists is often one of fact, the issue may be resolved as a question of law when reasonable minds can only draw one conclusion from the facts.” (*Dina v. People ex rel. Dept. of Transportation* (2007) 151 Cal.App.4th 1029, 1054; see also *Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347).

Government Code section 830.2 permits the court to decide the existence of a “dangerous condition” as a matter of law. That section states, “A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, *trivial* or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.” (Emphasis added. See also CACI, No. 1102).

Defendant City moves for summary judgment by relying upon the “trivial defect” defense.² This defense is explained in *Ursino v. Big Boy Restaurants of America* (1987) 192 Cal.App.3d 394, 398 (*Ursino*), where the court concluded, “persons who maintain walkways, whether public or private, are not required to maintain them in an absolutely perfect condition. The duty of care imposed on a property owner, even one with actual notice, does not require the repair of minor defects.” In *Ursino*, a 72-year old woman tripped on a raised edge of a section of defendant’s sidewalk and fell. The parties stipulated to a number of facts, one of which was that “the edge of the cement section in question was raised no higher than three-fourths of an inch.” (*Ursino, supra*, 192 Cal.App.3d at p. 396). The trial court granted summary judgment in defendant’s favor on the basis that the affirmative defense of “trivial defect” applied as a matter of law. The appellate court affirmed. The *Ursino* court explained what a trial court should consider in determining whether the defect is, in fact, “trivial.”

When a court determines whether a given defect is trivial, as a matter of law, the court should not rely merely upon the size of the depression. While size may be one of the most relevant factors to the decision, it is not always the sole criterion. Instead, the court should determine whether there existed any circumstances surrounding the accident which might have rendered the defect more dangerous than its mere abstract depth would indicate. (*Id.* at p. 397; punctuation omitted).

² In *Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927, the court explained, “Courts have referred to this simple principle as the ‘trivial defect defense,’ although it is not an affirmative defense but rather an aspect of duty that plaintiff must plead and prove.” In either case, it is defendant City’s initial burden of either negating the element of duty or establishing the trivial defect defense.

Some of those other circumstances would include, “lighting, debris, or a history of other similar injuries.” (*Id.*).

Aside from the size of the defect, the court should consider whether the walkway had any broken pieces or jagged edges and other conditions of the walkway surrounding the defect, such as whether there was debris, grease or water concealing the defect, as well as whether the accident occurred at night in an unlighted area or some other condition obstructed a pedestrian’s view of the defect. (*Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927).

The legal analysis involves several steps. First, the court reviews evidence regarding the type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors such as the weather, lighting and visibility conditions at the time of the accident, the existence of debris or obstructions, and plaintiff’s knowledge of the area. If these additional factors do not indicate the defect was sufficiently dangerous *to a reasonably careful person*, the court should deem the defect trivial as a matter of law and grant judgment for the landowner. [Citation]. (*Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 567–568; emphasis added).

In moving for summary judgment, defendant City proffers the following facts: On October 20, 2023 at approximately 10:30 p.m., Plaintiff was walking on Yerba Buena Road between Nieman Boulevard and Byington Drive in the City of San Jose, when he tripped and fell.³ Plaintiff began his trip at 2767 Deer Isle Drive and was planning on turning around when he reached Nieman Boulevard to head back toward his house.⁴ The walk from Plaintiff’s house to Nieman Boulevard is uphill, and the walk back is downhill.⁵ Plaintiff described the area of Yerba Buena Road where the fall occurred as “dark” with no streetlights.⁶ Plaintiff stated that he could somewhat see the sidewalk because of the color differences between the pavement, but that he could not see any details, and he was not able to see the uplift that tripped him before he fell.⁷ Plaintiff also stated that it was “mostly dark” along the other parts of Yerba Buena Road that were on his route.⁸ Plaintiff did not use the flashlight feature on his phone to light his path.⁹

Plaintiff estimated that he had walked along this route once or twice a year over the last 20 years that he had lived in his home.¹⁰ During all those other walks, Plaintiff never had any issue or notice any uneven surface on the sidewalk.¹¹

During this particular night, Plaintiff stated he was on his way home from Nieman Boulevard walking back on the downslope when his right toe “caught on the uneven surface, the rise of one of the sidewalks,” and he tripped over it.¹² The piece of concrete where Plaintiff allegedly fell was approximately 1.75 inches tall.¹³

From these facts, defendant City invites the court to reach the conclusion, as a matter of law, that the condition was not dangerous. However, the court is presented with competing evidence of factors weighing in favor of (accident occurring at night in unlit area) and against (1.75” height differential) a finding that the defect at issue was sufficiently dangerous to a reasonably careful person. Under these circumstances, the court declines to reach a conclusion that

³ See Defendant City of San Jose’s Separate Statement in Support of Motion for Summary Judgment, or in the Alternative, Summary Adjudication (“City UMF”), Fact No. 1.

⁴ See City UMF, Fact No. 2.

⁵ See City UMF, Fact No. 3.

⁶ See City UMF, Fact No. 5.

⁷ See City UMF, Fact No. 6.

⁸ See City UMF, Fact No. 8.

⁹ See City UMF, Fact No. 9.

¹⁰ See City UMF, Fact No. 11.

¹¹ See City UMF, Fact No. 12.

¹² See City UMF, Fact No. 13.

¹³ See City UMF, Fact No. 16.

the alleged defect is trivial as a matter of law. (See *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 120, 123—“a condition's dangerousness can be established even when the plaintiff did not use due care when encountering it;” “reasonable minds could still differ as to its dangerousness based on the evidence of [aggravating factors];” “we disregard plaintiff’s familiarity with the area and the specific sidewalk condition in our triviality analysis.”).

C. ACTUAL/ CONSTRUCTIVE NOTICE

Defendant City argues additionally that summary judgment should be granted because defendant City had neither actual nor constructive notice of the allegedly dangerous condition. As noted earlier, Government Code section 835 requires a showing of either:

- (a) The dangerous condition was created by a public employee’s negligent or wrongful act or omission within the scope of his or her employment, or
- (b) The entity had actual or constructive notice of the condition a sufficient time before the injury occurred to have taken reasonable measures to protect against the injury. (Gov. Code, §835).

A showing that defendant City had actual/ constructive notice is but one of two alternatives in establishing a claim for dangerous condition of public property. The other alternative is to show that the dangerous condition was created by a public employee’s negligent or wrongful act or omission within the scope of employment. Since these alternatives are stated in the disjunctive, defendant City must demonstrate Plaintiff cannot establish either in order to meet its initial burden on summary adjudication. (See Code Civ. Proc., §437c, subd. (p)(2)—“A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.”).

While defendant City’s focus is on actual/ constructive notice, defendant City acknowledges its burden by stating, “To begin with, there is no evidence that the City negligently or wrongfully created the sidewalk uplift. (UMF #19 – 22).” (See page 7, lines 15 – 16, of Defendant City of San Jose’s Memorandum of Points and Authorities ISO Motion for Summary Judgment, or in the Alternative, Summary Adjudication). However, in this court’s opinion, the evidence cited by defendant City does not support its assertion. The four facts cited by defendant City are: The City is a public entity that relies upon a complaint-based sidewalk inspection system, where sidewalks are fixed after receipt of a complaint from a citizen or from a City employee out conducting City business; This is because there are over 3100 miles of sidewalk in the City, which makes it cost-prohibitive and impossible for City employees to actively inspect all sidewalks in the City, absent the receipt of a complaint; The City had zero complaints relating to the subject area before Plaintiff’s fall; and Plaintiff’s government claim is the first time the City became aware of a potential sidewalk issue in the subject area.

The facts cited by defendant City simply do not address whether defendant City negligently or wrongfully created the sidewalk uplift. As such, defendant City has not met its initial burden of showing that one or more elements of the cause of action, even if not separately pleaded, cannot be established. Irrespective of whether defendant City had actual or constructive notice of the allegedly dangerous condition, defendant City has not shown that the alternative (i.e., dangerous condition was created by a public employee’s negligent or wrongful act or omission within the scope of his or her employment) cannot be established.

IV. CONCLUSION

Based on the foregoing, defendant City’s motion for summary judgment is DENIED.

The Court will prepare the formal Order.

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Calendar Line # 7
Case Name Danielle Stanton vs Mehus Construction, Inc.
Case No. 24CV452024
Motion to Compel Further Response to Request for Production; Sanctions <u>I. BACKGROUND</u> This case stems from a construction defect allegation that Plaintiff Danielle Stanton asserted after hiring Defendant Mehus Construction Inc. (“Mehus”) to construct a new custom single family residence and garage in Los Gatos, California. On November 18, 2024, Plaintiff Stanton filed a Complaint alleging three causes of actions: (1) negligence against all Defendants; (2) breach of contract against Defendant Mehus; (3) and breach of warranty against Defendant Mehus. Defendants filed Answers, Cross-Complaints, and First Amended Cross-Complaint in this matter. Before the Court, is Defendant/Cross-Complainant Mehus’s motion to compel further responses for request for production of documents (“RFPD”), Nos. 42-52, set three and sanctions. The motion was filed on July 31, 2026 and accompanied by a proof of service indicating electronic service on plaintiff’s counsel and counsel for cross-defendants/cross complainants on that same day. Plaintiff opposes the motion to compel and filed timely opposition briefs on August 25, 2026. Defendant Mehus filed a reply brief on August 31, 2026. The Court has carefully reviewed the following: Defendant Mehus’s notice of motion to compel, memorandum of points and authorities (“MPA”); Declaration of Kiran S. Idrees and attached Exhibits A-F (totaling X pages); Mehus’s separate statement in support of the motion (totaling 31 pages); Plaintiff’s Opposition (totaling 21 pages); Declaration of Missy M. Cornejo and attached Exhibits 1-5 in support of Plaintiff’s Opposition (totaling 39 pages); Mehus’s Reply brief (totaling 14 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (<i>City of Los Angeles v. Superior Court</i> (2017) 9 Cal.App.5th 272, 288). Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (<i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of